

CODE OF CIVIL PROCEDURE, 1908 (ACT V OF 1908)

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PREAMBLE: An Act / Ordinance to consolidate, amend and enact laws relating to Code of Civil Procedure, 1908 (Act V of 1908).

Section 9: Courts to try all civil suits unless barred

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The Courts shall (subject to the provisions herein contained) have jurisdiction to try all suits of a civil nature excepting suits of which their cognizance is either expressly or impliedly barred.

Order 39 Rule 1 & 2: Temporary Injunctions and Interlocutory Orders

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Where in any suit it is proved by affidavit or otherwise: (a) that any property in dispute is in danger of being wasted, damaged or alienated by any party; or (b) that the defendant threatens to remove or dispose of his property with intent to defraud his creditors, the Court may by order grant a temporary injunction (Requires 3 essential ingredients: Prima facie case, Balance of convenience, Irreparable loss).